

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

JUDE MEZAR and PATRICE ALLEN,

Plaintiffs,

-against-

P.O. LOUIS DEFRANCO, shield # 13579, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICERS JOHN/JANE DOES 1-12 (actual names unknown at this time)

Defendants.

Filed: 8/31/2016

INDEX NO. 515352/2016

Plaintiff designates Kings County as the place of trial.

SUMMONS WITH NOTICE

The basis of venue is the County in which the cause of action arose.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiffs' attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
August 31, 2016

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

P.O. LOUIS DEFRANCO, shield # 13579

to THE CITY OF NEW YORK NARCOTICS BOROUGH
100 Church Street MANHATTAN SOUTH

1 POLICE PLAZA, NARCOTICS DIVISION

NEW YORK, NY 10038

New York, New York 10007

and

THE NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza

New York, New York 10007

THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza

New York, New York 10007

NOTICE: The nature of this action is as follows:

To recover money damages for personal injuries, emotional and mental distress, injury to reputation and character and related damages incurred by and on behalf of plaintiffs **JUDE MEZAR** and **PATRICE ALLEN** by reason of the negligence, recklessness, carelessness and intentional conduct of defendants P.O. LOUIS DEFRANCO, shield # 13579, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICERS JOHN/JANE DOES 1-12 (actual names unknown at this time)/unidentified police officers, their agents, servants, employees and/or licensees commencing at approximately 10:00 p.m. at or near the intersection of Flatbush Avenue and Newkirk Avenue Brooklyn, New York.

Plaintiff **JUDE MEZAR** alleges that at the aforementioned location claimant was standing outside of a bodega watching a confrontation between police officers and a group of individuals across the street. A contingent of police vehicles arrived at the location and plaintiff continued to observe while leaning against a signpost. Suddenly, plaintiff was approached by several police officers who attempted to arrest him. Plaintiff's inquiry as to what he had done was met with two punches in the face by a police officer "Williams."

Plaintiff then fell to the ground, at which time he was struck in the face for a third time by police officer "Williams." Although bleeding, Plaintiff was denied transport to a hospital. Instead, he was brought to the 70 Precinct and placed in a holding cell for several hours. He was told by police officers at the 70 Precinct that if he did not go to the hospital he would be given a "desk appearance ticket." Plaintiff JUDE MEZAR repeatedly requested transport to a hospital and was finally escorted by two police officers via EMS to Maimonides Hospital Emergency Department. In police custody, Plaintiff JUDE MEZAR spent several hours in the hospital's emergency department and upon release was taken back to the 70 Precinct. He was then transferred to Central Booking where he remained for approximately 24 hours before being released. Plaintiff was charged with resisting arrest, disorderly conduct and related charges. He has had several court appearances and the matter is still pending. Defendant P.O. LOUIS DEFRANCO, shield # 13579 was involved in the above described physical altercation as well as the subsequent arrest, determination of charges and swearing out a false complaint.

Plaintiff JUDE MEZAR alleges that the use of such unnecessary and excessive force was intentional or the result of gross negligence. Plaintiff did not commit any violation or engage in any conduct which would justify the defendant(s) to employ such unnecessary and excessive force against the plaintiff, and the injuries inflicted upon the plaintiff by the unidentified defendants' use of unnecessary and excessive force was not the plaintiff's fault. The police officers' intentionally inflicted emotional distress on the plaintiff who is a New York City resident by wrongfully charging him with the offense of resisting arrest, disorderly conduct and related charges and wrongfully imprisoned plaintiff in a detention facility.

Plaintiff **PATRICE ALLEN** alleges that at the aforementioned location claimant was standing outside of a bodega watching a confrontation between police officers and a group of individuals across the street. A contingent of police vehicles arrived at the location and claimant continued to observe. He observed a big, heavy police officer banging and beating on a metal gate and a female police officer about to spray mace into the crowd. Suddenly, several female police officers shouted to another police officer to arrest claimant. Plaintiff inquired as to what he had done. The police officer who had been banging on the metal gate then started to beat and strike plaintiff about the body with the metal stick he had used to strike the gate. Plaintiff was then pushed into the garbage, thrown to the ground, handcuffed and struck about the head and body by several other police officers. Plaintiff was brought to the 70 Precinct and he was given medical care by EMS who were called to the precinct. He was then transferred to Central Booking where he remained for approximately 24 hours before being released. Plaintiff was charged with obstructing governmental administration, resisting arrest, disorderly conduct and related charges. Plaintiff appeared in court several times until the matter was ultimately dismissed and sealed on July 2, 2015. Defendant P.O. **LOUIS DEFRANCO**, shield # 13579 was involved in the above described physical altercation as well as the subsequent arrest, determination of charges and swearing out a false complaint.

Plaintiff **PATRICE ALLEN** alleges that the use of such unnecessary and excessive force was intentional or the result of gross negligence. Plaintiff did not commit any violation or engage in any conduct which would justify the defendant(s) to employ such unnecessary and excessive force against the plaintiff, and the injuries inflicted upon the plaintiff by the unidentified defendants' use of unnecessary and excessive force was not the plaintiff's fault. The police officers' intentionally inflicted emotional distress on the plaintiff who is a New

York City resident by wrongfully charging him with the offense of obstructing governmental administration, resisting arrest, disorderly conduct and related charges and wrongfully imprisoned plaintiff in a detention facility.

Based on the foregoing, plaintiffs' claims against these defendants include the use of excessive force, false arrest and false imprisonment, malicious prosecution, and the violation of plaintiffs' civil and constitutional rights pursuant to 42 U.S.C. 1983. Plaintiffs seeks both compensatory and punitive damages and attorneys' fees.

UPON YOUR FAILURE TO APPEAR:

Judgment will be taken against you by default for a sum which exceeds the jurisdictional limits of all lower courts, with interest from June 5, 2015 and the cost of this action.

Dated: New York, New York
August 31, 2016

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

JUDE MEZAR and PATRICE ALLEN,

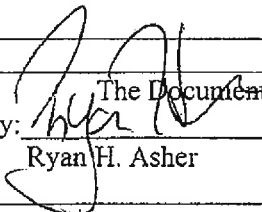
Plaintiffs,

-against-

P.O. LOUIS DEFRANCO, shield # 13579, THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICERS JOHN/JANE DOES 1-12 (actual names
unknown at this time)

Defendants.

SUMMONS WITH NOTICE

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:
By: 

Ryan H. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiffs

111 John Street

Fourteenth Floor

New York, New York 10038

(212) 227-5000

PLEASE TAKE NOTICE

NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the
within named Court on , 2016 .

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the

of the within named Court, at , New York, on , 2016 , at 9:30
A.M.

Dated:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X
JUDE MEZAR and PATRICE ALLEN

Plaintiff/Petitioner,

- against -

Index No. 515352/2016P.O. LOUIS DEFRANCO, shield # 13579, THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and POLICE OFFICERS JOHN/JANE DOES 1-12 (actual names unknown at this time)Defendant/Respondent.
-----X**NOTICE REGARDING AVAILABILITY OF ELECTRONIC FILING
SUPREME COURT CASES**

PLEASE TAKE NOTICE that the matter captioned above has been commenced as an electronically filed case in the New York State Courts Electronic Filing System ("NYSCEF") as allowed by CPLR § 2111 and Uniform Rule § 202.5-b (consensual electronic filing). This notice is being served as required by that rule.

NYSCEF is designed for the electronic filing of documents with the County Clerk and the court and for the electronic service of those documents, court documents, and court notices upon counsel and unrepresented litigants who have consented to electronic filing.

Electronic filing offers significant benefits for attorneys and litigants, permitting papers to be filed with the County Clerk and the court and served on other parties simply, conveniently, and quickly. NYSCEF case documents are filed with the County Clerk and the court by filing on the NYSCEF Website, which can be done at any time of the day or night on any day of the week. The documents are served automatically on all consenting e-filers as soon as the document is uploaded to the website, which sends out an immediate email notification of the filing.

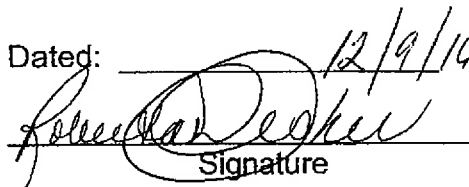
The NYSCEF System charges no fees for filing, serving, or viewing the electronic case record, nor does it charge any fees to print any filed documents. Normal filing fees must be paid, but this can be done on-line.

1) Parties represented by an attorney: An attorney representing a party who is served with this Notice must promptly either consent or decline consent to electronic filing and service through NYSCEF for this case. Attorneys registered with NYSCEF may record their consent electronically in the manner provided at the NYSCEF site. Attorneys not registered with NYSCEF but intending to participate in e-filing must first create a NYSCEF account and obtain a user ID and password prior to recording their consent by going to www.nycourts.gov/efile. Attorneys declining to consent must file with the court and serve on all parties of record a declination of consent.

2) Parties not represented by an attorney: Unrepresented litigants are exempt from e-filing. They can serve and file all documents in paper form and must be served with all documents in paper form. However, an unrepresented litigant may consent to participate in e-filing.

For information on how to participate in e-filing, unrepresented litigants should contact the appropriate clerk in the court where the action was filed or visit www.nycourts.gov/efile-unrepresented. Unrepresented litigants also are encouraged to visit www.nycourthelp.gov or contact the Help Center in the court where the action was filed. An unrepresented litigant who consents to e-filing may cease participation at any time. However, the other parties may continue to e-file their court documents in the case.

For additional information about electronic filing and to create a NYSCEF account, visit the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center (phone: 646-386-3033; e-mail: efile@nycourts.gov).

Dated: 12/9/14
SignatureRoberta D. Asher, Esq.

Name

Asher & Associates, P.C.

Firm Name

111 John Street, Fourteenth Floor

Address

New York, New York 10038212-227-5000

Phone

rdasher@asherlaw.com

E-Mail

To: _____

9/3/15